

and discretion, only if they acted in good faith as defined by the Court:

“[I]n varying scope, a qualified immunity is available to officers of the executive branch of government, the variation being dependent upon the scope of discretion and responsibilities of the office and all the circumstances as they reasonably appeared at the time of the action on which liability is sought to be based. It is the existence of reasonable grounds for the belief formed at the time and in light of all the circumstances, coupled with good-faith belief, that affords a basis for qualified immunity of executive officers for acts performed in the course of official conduct.” *Scheuer v. Rhodes*, 416 U. S. 232, 247–248 (1974).

Common-law tradition, recognized in our prior decisions, and strong public-policy reasons also lead to a construction of § 1983 extending a qualified good-faith immunity to school board members from liability for damages under that section. Although there have been differing emphases and formulations of the common-law immunity of public school officials in cases of student expulsion or suspension, state courts have generally recognized that such officers should be protected from tort liability under state law for all good-faith, nonmalicious action taken to fulfill their official duties.⁹

⁹ See *Donahoe v. Richards*, 38 Me. 379 (1854); *Dritt v. Snodgrass*, 66 Mo. 286 (1877); *McCormick v. Burt*, 95 Ill. 263 (1880); *Board of Education of Cartersville v. Purse*, 101 Ga. 422, 28 S. E. 896 (1897); *Board of Ed. of City of Covington v. Booth*, 110 Ky. 807, 62 S. W. 872 (1901); *Morrison v. City of Lawrence*, 181 Mass. 127, 63 N. E. 400 (1902); *Sorrels v. Matthews*, 129 Ga. 319, 58 S. E. 819 (1907); *Douglass v. Campbell*, 89 Ark. 254, 116 S. W. 211 (1909); *Barnard v. Shelburne*, 216 Mass. 19, 102 N. E. 1095 (1913); *Sweeney v. Young*, 82 N. H. 159, 131 A. 155 (1925) (absolute immunity for acts taken within range of general authority). See